Exposing vacant core policies:

Tracing authorization claims regarding use of first language in ABE for English language learners

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Introduction

This critical policy analysis pairs an ethnographic approach with critical discourse analysis (CDA) to examine how adult basic education (ABE) policy delimits the use of adult learners' first languages in support of English language and literacy development. Use of CDA as defined by van Leeuwen (2007**) to analyze policy** reveals unfounded claims of legitimation & authorization, and examination of broader context elucidates dominant discourses which shaped the policy.

ABE POLICY ON TEACHING LANGUAGES OTHER THAN ENGLISH

Effective: June 1, 2004

Unless a waiver is obtained from the Minnesota Department of Education, Adult Basic Education Office, instruction in a language other than English for Adult Basic Education or for a non-English GED/diploma (e.g., Spanish and French GED) is not allowed as a "countable" contact hour.

State and federal Adult Basic Education laws do not authorize instructional services in languages other than English. It is the clear intent of both laws to promote the acquisition of English literacy and speaking skills.

A waiver to this policy may be granted by the Minnesota Department of Education. The rationale must be related to the effective use and accountability of taxpayer dollars (producing positive benefits to the state).

Note: This policy does not preclude the use of languages other than English in a "translation-assistance" sense.

Methodology

CDA Policy Analysis

'Language policies and educational practices are always situated in relation to wider issues of power, access, opportunity, inequality and, at times discrimination and disadvantage.' (May and Hornberger 2007)

Framework

van Leeuwen's legitimation



"...defining discourses as socially constructed ways of knowing some aspect of reality which can be drawn upon when that aspect of reality has to be represented, or, to put it another way, context-specific frameworks for making sense of things" (van Leeuwen, 2008, p. 144).

Context

Ethnography of policy examined through multiple contexts

Historical & political events

Policy written in context of conservative ascendency and resulting scrutiny of Minnesota state budget

YEAR	SPEAKER	PARTY	DIST.	RESIDENCE
2015	Kurt Daudt	R	31A	Crown
2013	Paul Thissen	DFL	61B	Minneapolis
2011	Kurt Zellers	R	32B	Maple Grove
2009	Margaret Anderson Kelliher	DFL	60A	Minneapolis
2007	Margaret Anderson Kelliher	DFL	60A	Minneapolis
2005	Steve Sviggum	R	28B	Kenyon
2003	Steve Sviggum	R	28B	Kenyon
2001	Steve Sviggum	R	28B	Kenyon
1999	Steve Sviggum	R	28B	Kenyon
1997	Phil Carruthers	DFL	47B	Brooklyn Center
1995	Irvin N. "Irv" Anderson	DFL	3A	International Falls
1993	Irvin N. "Irv" Anderson; elected by DFL caucus 1 September 1993.	DFL	3A	International Falls
1993	Dee Long; resigned speaker's chair 5 August 1993, effective 15 Sept. 1993.	DFL	59A	Minneapolis
1992	Dee Long; elected speaker-designate by DFL caucus 11 Aug. 1991; elected speaker by House, 6 Jan. 1992.	DFL	59A	Minneapolis
1991	Robert E. Vanasek	DFL	25A	New Prague
1989	Robert E. Vanasek	DFL	25A	New Prague

English-only policy aligned with conservative values; provided successful defense or cover for ABE funding

FY2002	FY 2003	FY 2004	FY 2005	FY 2006	FY 2007
$32.150 M	$31.659 M	$34.388 M	$36.509 M	$36.518 M	$37.999 M

State Statues

MN statutes (2009 & 2014) refer to "other literacy"; MN 20014 Education Policy Bill – use L1 for ELS literacy

124D.52 ADULT BASIC EDUCATION.

§ Subdivision 1. **Program requirements.** (a) An adult basic education program is a day or evening program offered by a district that is for people over 16 years of age who do not attend an elementary or secondary school. The program offers academic and English language instruction necessary to earn a high school diploma or equivalency certificate.

§ Subd. 7. **Performance tracking system.** (a) By July 1, 2000, each approved adult basic education program must develop and implement a performance tracking system to provide information necessary to comply with federal law and serve as one means of assessing the effectiveness of adult basic education programs. For required reporting, longitudinal studies, and program improvement, the tracking system must designed to collect data on the following core outcomes for learners, including English learners, who have completed participating in the adult basic education program:

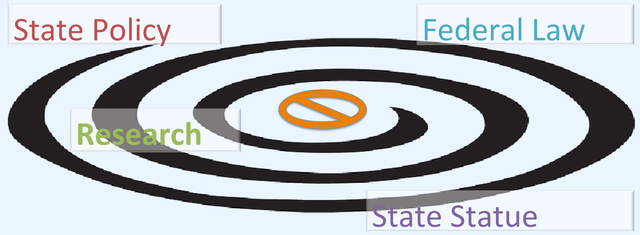
(1) demonstrated improvements in literacy skill levels in reading, writing, speaking the English languag numeracy, problem solving, English language acquisition and other literacy skills;

(2) placement in, retention in, or completion of postsecondary education, training, unsubsidized employment, or career advancement;

Federal Law

- WIA II - Old law neither supports nor prohibits L1
- WIOA (2014) New law mandates use of instructional activities based on "rigorous research"

Legitimation by Authorization: Core Vacant Policy



Tracing the authorizers for the policy reveals that each subsequent authorizer fails to delimit use of L1, as suggested in the ABE policy

State ABE Policy
- No L1 in ABE classrooms
- Refers to state statue and federal law as authorizers

State Statute
- Old law silent on the issue
- New ABE law silent; new Omnibus Bill supports use of L1

Federal Law
- Old federal law silent on the issue
- New federal law refers to "scientific research" as arbitrator

Research
- Shows use of L1 in instruction effective in L2 learning
- Discredits claims made in State ABE Policy

Core Vacant policy
- Authorizers at state and federal level fail to support policy

Findings

Authorization from…

- Claims of authorization reveal a "vacant core policy" - a policy that refers to one or more authorizers yet at its core is unsubstantiated by those very authorizers.
- Decisions about ABE policy are possibly motivated by issues of funding and political expediency rather than learner outcomes and current research-based understandings of second language acquisition.

Implications

Findings validate instructional strategies of teachers who may employ practices in opposition to an English only policy as they rely on researched-based strategies supporting second language acquisition.

A larger-scale implication of this study is the the disruption of binary covert or overt language policy distinctions through the addition of a new level of specificity (i.e., "vacant core policy").

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- Jessie Dockter Tierney introduced us to van Leeuwen's CDA methodology
- Patsy Vinogradov's unpublished work, "Toward biliteracy? First language instructional practice in the MN Adult ESL Classroom" provided analysis of policy with respect to previous state statute and federal law. Our work extends the analysis to current laws and broader context.